

23TRCV00017 23TRCV00017

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-05

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Case Number: 23TRCV00017 Hearing Date: August 5, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JOHN DOE, A MINOR

;

Plaintiff,

vs.

MASON SWAN LEWIS

;

Defendant.

Case

No.:

23TRCV00017

Hearing

Date:

August
5, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

JOHN DOE'S MOTION TO AMEND JUDGMENT TO ADD TREBLE DAMAGES PURSUANT TO CIVIL
CODE § 1708.8(D) AND PREJUDGMENT INTEREST PURSUANT TO CODE OF CIVIL PROCEDURE
§ 3291

MOVING PARTY: Plaintiff, John Doe, a minor, by
and through his Guardian Ad Litem, John T.R. Doe

RESPONDING PARTY: Defendant, Mason Swan Lewis

(1) Plaintiff

John Doe's Motion to Amend Judgment to Add Treble Damages Pursuant to Civil
Code § 1708.8(d) and Prejudgment Interest Pursuant to Code of Civil Procedure §
3291 is DENIED pursuant to Code of Civil Procedure section 916.

The Court considers the moving
papers filed on June 2, 2026, the opposition brief filed on July 9, 2026, and
the reply brief filed on July 15, 2026.

BACKGROUND

Factual Background

On January 4, 2023, plaintiff John
Doe, a minor, by and through his Guardian Ad Litem, John T.R. Doe filed the
Complaint for Personal Injuries and Damages against defendant Mason Swan Lewis
("Defendant") and DOES 1 through 20. The
Complaint includes the following causes of action: (1) Invasion of Privacy; (2)

Constructive Invasion of Privacy (Civil Code § 1708.8); (3) Intrusion into Private Affairs; (4) Intentional Infliction of Emotional Distress; and (5) Negligence.

On September 14, 2023, Plaintiff filed another Complaint – Uniform Voidable Transactions Act (Civil Code § 3439 et seq.) against defendants Mason Swan Lewis, David Lewis, Mary Lewis, and DOES 1 through 20 in Case No. 23TRCV03052. On September 26, 2023, Plaintiff filed a First Amended Complaint – Uniform Voidable Transactions Act (Civil Code § 3439 et seq.) against the same defendants.

On January 23, 2024, the Court found that Case Nos. 23TRCV00017 and 23TRCV03052 are “related within the meaning of California Rules of Court, rule 3.300(a).” (January 23, 2024, Minute Order, p. 1.) As a result, the Court designated Case No. 23TRCV00017 as the lead case. (January 23, 2024, Minute Order, p. 1.)

On July 24, 2026, Plaintiff served a statutory offer under Code of Civil Procedure section 998 on Defendant for \$80,000.00. (Declaration of Peter A. Reagan (“Reagan Decl.”), ¶ 3, Exh. 2.) Defendant did not accept this offer. (Reagan Decl., ¶ 3, Exh. 2.)

On May 18, 2026, “the jury found Defendant Mason Lewis liable for constructive invasion of privacy by finding that: (1) Plaintiff had a reasonable expectation of privacy in the bathroom stall, (2) Mason Lewis intentionally intruded in the bathroom stall with his phone, (3) Mason Lewis’ intrusion in the bathroom stall with his phone would be highly offensive to a reasonable person, (4) Mason Lewis used a device to attempt to capture a visual image of Plaintiff that could not have been achieved without a trespass unless the device was used, (5) Mason Lewis’ conduct was a substantial factor in causing harm to Plaintiff, and (6) Plaintiff was harmed in the amount of \$50,000.” (Reagan Decl., ¶ 2, Exh. 1.) Furthermore, Plaintiff was awarded an additional \$300,000.00 in punitive damages. (Reagan Decl., ¶ 2, Exh. 1.)

On June 1, 2026, the Court

signed the Judgment on Jury Verdict, in which "Plaintiff John Doe (Jack R.) recover from Defendant Mason Swan Lewis in the sum of \$350,000 with interest at ten percent (10%) per annum from the date of the entry of this judgment until paid in full, in addition to prejudgment interest in the amount of \$ TBD as provided by Code of Civil Procedure section 3291, costs in the amount of \$ TBD as provided by Code of Civil Procedure section 1032(b), and statutory damages up to three times the amount of general damages in the amount of \$ TBD as provided by California Civil Code section 1708.8(d).

LEGAL STANDARDS

"A person is liable for constructive invasion of privacy when the person attempts to capture, in a manner that is offensive to a reasonable person, any type of visual image, sound recording, or other physical impression of the plaintiff engaging in a private, personal, or familial activity, through the use of any device, regardless of whether there is a physical trespass, if this image, sound recording, or other physical impression could not have been achieved without a trespass unless the device was used." (Civ. Code, § 1708.8, subd. (b).) "A person who commits any act described in subdivision (a), (b), or (c) is liable for up to three times the amount of any general and special damages that are proximately caused by the violation of this section. This person may also be liable for punitive damages, subject to proof according to Section 3294. If the plaintiff proves that the invasion of privacy was committed for a commercial purpose, the person shall also be subject to disgorgement to the plaintiff of any proceeds or other consideration obtained as a result of the violation of this section. A person who comes within the description of this subdivision is also subject to a civil fine of not less than five thousand dollars (\$5,000) and not more than fifty thousand dollars (\$50,000)." (Civ. Code, § 1708.8, subd. (d).)

"If the plaintiff makes an offer pursuant to Section 998 of the Code of Civil Procedure which the defendant does not accept prior to trial or within 30 days, whichever occurs first, and the plaintiff obtains a more favorable judgment, the judgment shall bear interest at the legal rate of 10 percent per annum calculated from the date of the plaintiff's first offer pursuant to Section 998 of the Code of Civil Procedure which is exceeded by the judgment, and interest shall accrue until the satisfaction of judgment." (Code Civil Proc., § 3291.)

DISCUSSION

Plaintiff requests this Court

to amend the judgment issued on June 1, 2026, by (1) granting an award of treble damages that would increase Plaintiff's compensatory damages from \$50,000.00 to \$150,000.00 in accordance with Civil Code section 1708.8, subdivision (d), and (2) incorporating prejudgment interest in the amount of \$5,425.06 pursuant to Code of Civil Procedure section 3291. (Motion, pp. 1:26-2:27.) However, this request is DENIED due to Defendant's appeal.

"Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916, subd. (a), emphasis added; see *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189 [not followed as dicta on other grounds in *Barry v. State Bar of California* (2017) 2 Cal.5th 318].) "When there is a stay of proceedings other than the enforcement of the judgment, the trial court shall have jurisdiction of proceedings related to the enforcement of the judgment as well as any other matter embraced in the action and not affected by the judgment or order appealed from." (Code Civ. Proc., § 916, subd. (b).)

"The purpose of the automatic stay provision of section 916, subdivision (a) is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering the appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it." (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189.) "By contrast, an appeal does not stay proceedings on 'ancillary or collateral matters which do not affect the judgment [or order] on appeal' even though the proceedings may render the appeal moot." (Id. at p. 191, *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938.) Thus, "while an appeal from a judgment is pending the trial court has no power to amend or correct the same." (*Linstead v. Superior Court of Mendocino County* (1936) 17 Cal.App.2d 9, 12; see *Parkside Realty Co. v. MacDonald* (1914) 167 Cal. 342, 346 ["while an appeal from a judgment is pending, the trial court has no power to amend or correct such judgment."].)

Here, on June 5, 2026, the Defendant filed a notice of appeal regarding the judgment entered against him.

Plaintiff's request to modify
the judgment and granting said request would alter the appealed
judgment...rendering the appeal futile within the meaning of Varian Medical Systems,
Inc. v. Delfino (Supra).

As such, Plaintiff's motion is
DENIED.

ORDERS

1) Plaintiff

John Doe's Motion to Amend Judgment to Add Treble Damages Pursuant to Civil
Code § 1708.8(d) and Prejudgment Interest Pursuant to Code of Civil Procedure §
3291 is DENIED.

2) Plaintiff

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 5, 2026

Tamara
Hall

Judge
of the Superior Court